

12.	American Express National Bank vs. Kim 25-01482908	1. Motion for Summary Judgment and/or Adjudication 2. Case Management Conference Plaintiff American Express National Bank’s (“Plaintiff”) unopposed Motion for Summary Judgment, or in the Alternative Summary Adjudication (“Motion”), is GRANTED. Plaintiff met its initial burden to show every element of its causes of action for breach of contract. (See Code Civ. Proc. § 437c, subd. (p)(1) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 [same]; <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [breach of contract elements]; see also Pl. SSUF #1-14; Touhidi Decl. at ¶¶9-14, Exh. A-D.) On 2/20/26, the date this motion was originally set to be heard, Defendant Hyunji Kim appeared and requested a continuance in order to permit him time to file an opposition. Defendant’s request was granted, and he was given “a one-time opportunity to file the opposition to Plaintiff’s motion.” (See ROA 41 [2/20/26 Minute Order].) To date, no opposition has been filed, despite the 11 week continuance of this hearing to provide Defendant an opportunity to respond. Accordingly, the court finds that Defendant has failed to meet his shifted burden to identify a disputed issue of material fact that necessitates a trial of this action. The Plaintiff shall file a proposed judgment with this Court within 60 days of this ruling. The Court now schedules an OSC re: Proposed Judgment Submission on August 20, 2026, at 9:30 a.m. in Department C12. If the proposed judgment is approved in advance of that date, the hearing will go off calendar. The clerk shall give notice.
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